

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

In the matter of a Petition of Appeal in
terms of Section 331(1) of the Code of
Criminal Procedure Act No. 15 of 1979.

The Democratic Socialist Republic of Sri
Lanka

Complainant

Court of Appeal Case No:

HCC/0271/2025

High Court of Chilaw Case No:

HC/16/2021

-Vs-

Mahalekamlage Antony Chaminda
Fernando *alias* Mahalekamlage Anton
Chaminda Fernando

Accused

AND NOW BETWEEN

Mahalekamlage Antony Chaminda
Fernando *alias* Mahalekamlage Anton
Chaminda Fernando

Accused-Appellant

-Vs-

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant- Respondent

Before : **P. Kumararatnam, J.**
Pradeep Hettiarachchi, J.

Counsel : Kasun Liyanage for the Accused-Appellant
: Chrisanga Fernando, SC for the Respondent

Argued on : 24.07.2026

Decided on : 17.09.2026

Pradeep Hettiarachchi, J

Judgment

1. This appeal arises from the judgment and sentence dated 21.08.2025 delivered by the Learned High Court Judge of Chilaw. The Accused-Appellant (hereinafter referred to as “the Appellant”) was indicted before the High Court of Chilaw on a charge of committing grave sexual abuse against one Liyanage Prathana Thikshani, an offence punishable under Section 365B(2)(b) of the Penal Code, as amended by Acts No. 22 of 1995, No. 29 of 1998, and No. 16 of 2006.
2. At the trial before the High Court, the prosecution called five witnesses, while the Appellant opted to make a dock statement. Upon the conclusion of the trial, the Learned Trial Judge found the Appellant guilty of the charge and convicted him accordingly.
3. Consequently, the Appellant was sentenced to nine years’ rigorous imprisonment and ordered to pay a fine of Rs. 50,000, with a default sentence of three months’ imprisonment. In addition, the Learned Trial Judge directed the Appellant to pay Rs. 300,000 as compensation to the prosecutrix, with a default sentence of two months’ imprisonment.

4. Being aggrieved by the said conviction and sentence, the Appellant has preferred the instant appeal. The Appellant relies on the following grounds of appeal;
 - a. The Learned Trial Judge has drawn wrong inferences from the matters in evidence as to the probability of the prosecution version.
 - b. The Learned Trial Judge has failed to consider the inconsistency in the evidence between PW1 and JMO.
 - c. The Learned Trial Judge has not considered all the pieces of evidence cumulatively, which would affect the test of spontaneity.
 - d. The sentence imposed by the Learned High Court Judge is excessive.
5. According to the testimony of the prosecutrix, she was ten years of age at the time of the alleged incident. On the day in question, she was not attending school as it was during the Aurudu vacation. While the prosecutrix was at home with her siblings, the Appellant invited them to accompany him to the paddy field to pluck green leaves at approximately 11.00 a.m. to 12.00 noon.
6. Accordingly, with the permission of the prosecutrix's father, the prosecutrix, accompanied by her two siblings and the Appellant's daughter, went with the Appellant to the paddy field for the purpose of plucking green leaves.
7. Thereafter, the Appellant took the siblings of the prosecutrix to a location some distance away from the place where he had remained with the prosecutrix and his daughter in a bushy area within the paddy field. The Appellant placed his daughter on his pair of shoes and seated the prosecutrix on his lap. Thereafter, the Appellant touched the prosecutrix's genital area with his hands.
8. After some time, when the siblings of the prosecutrix returned to the scene, the Appellant withdrew his hand and made the prosecutrix get up from his lap. Thereafter, all of them returned home. At the time the siblings returned to the scene, the Appellant instructed the prosecutrix not to disclose the incident to anyone.
9. Subsequently, according to the testimony of the prosecutrix, she disclosed the alleged incident to her mother. Prior to such disclosure, the siblings of the prosecutrix had

already informed the mother of certain unusual behavior exhibited by the prosecutrix. Thereafter, a complaint was made to the police, three days after the alleged incident.

10. I shall now consider the first ground of appeal advanced by the Appellant, namely, that the Learned Trial Judge erred in drawing wrong inferences from evidence as to the probability of the prosecution version.

11. In this regard, the Appellant principally contended that the place where the alleged offence was committed was readily detectable, and therefore, he would not have had a reasonable opportunity to commit the alleged offence. However, it is pertinent to note that the prosecutrix, in her evidence, clearly testified that the Appellant took the prosecutrix and his daughter to a bushy area within the paddy field and directed the prosecutrix's siblings to remain at a distance from the said location.

“උ: අපි ඔක්කොම ගියා. ගියාට පස්සේ නංගියි, මාවයි නිය ගෙන අක්කවයි, අයියවයි, නංගිවයි පල කඩන්න කියලා යැව්වා.

ප්‍ර: ඔබව නියා ගන්න කියලා කියන්නේ ඔබව කොහෙද නියා ගන්නේ?

උ: කැලෑවක් වගේ තියෙනවා නේ. එතන කාටවත් පෙන්නේ නැහැ.” (at vide page 68 of the Appeal Brief)

12. Further, it should be noted that the evidence of PW3, the sister of the prosecutrix, also described the place where the Appellant remained with his daughter and the prosecutrix as a bushy area surrounded by creepers.

“ප්‍ර: ඒ කියන්නේ ඒ ගියපු තැන මොන වගේ තැනක්ද බිමක් තියෙන තැනක්ද?

උ: එහෙමයි. බිමක් වගේ වැල් වලින් වට වෙලා තිබුනේ.” (at vide page 179 of the Appeal Brief)

13. The evidence of PW5, Woman Sub Inspector of Police, further supported that the place where the alleged offence was said to have been committed was a secluded and overgrown area.

“ප්‍ර: මහත්මිය මේ අපරාධය සිදු වූ ස්ථානය කවරු විසින්ද පෙන්වා සිටියේ?

උ: වින්දිත දැරිය විසින් පෙන්වා සිටියා.

ප්‍ර: දැන් ඔය අපරාධ ස්ථානය කුමන ආකාරයක ස්ථානයක්ද මහත්මිය?

උ: ගරු මැතිනියනි, මෙම ස්ථානය කැළැව් වැව්ලා තිබුණු වෙල්යායක් එකේ ඇත කහපාට මල් තිබුණා. පාළු ස්ථානයක්.” (at vide page 162 of the Appeal Brief)

14. It was further contended by the Appellant that, according to the evidence of PW2 and PW3, the Appellant’s wife had also accompanied them to the paddy field to pluck green leaves. On that basis, it was contended that the Appellant would not have had a reasonable opportunity to commit the alleged offence in the presence of his wife and, consequently, that the version presented by the prosecution was inherently improbable.

15. However, it is significant to note that PW3, the Sister of the prosecutrix, who had accompanied the prosecutrix and the Appellant to the paddy field, clearly testified that, although the Appellant’s wife had initially accompanied them, she did not proceed to the paddy field with them. This evidence, therefore, supports the prosecution version that the Appellant was able to remain with the prosecutrix and his daughter in the secluded area without being observed by any other person.

“ප්‍ර: කාන් එක්කද ගියේ?

උ: මමයි, නංගිලා දෙනෙයි, අයියයි, වමින්ද මාමායි, ඒ නැන්දාත් අපි සමග ගිය එයා වෙලට අවේ නැහැ. ඊට පස්සේ එයාගේ චූටි නංගින් ගියා.” (at vide page 176 of the Appeal Brief)

16. On the other hand, PW2, the mother of the prosecutrix, had not accompanied the children to the paddy field and her evidence in this regard was based on what had been related to her by her children. Accordingly, greater weight ought to be attached to the direct evidence of PW3, who was present at the scene, rather than to the evidence of PW2 insofar as it relates to the presence of the Appellant’s wife.

17. In these circumstances, the evidence does not establish that the Appellant’s wife was present at the particular location where the alleged incident took place. Therefore, the Appellant’s contention that he had no opportunity to commit the alleged offence, and that the prosecution version was consequently improbable, cannot be sustained.

18. Evidently, during cross-examination, not a single contradiction was marked in the evidence of the prosecutrix.

19. At this stage, it is essential to understand how the testimony of a child witness should be looked into and appreciated.

20. In ***Dattu Sakhare Vs. State of Maharashtra (1997) 5 SCC 341***, held that;

“There is no requirement or condition that the evidence of a child witness must be corroborated before it can be considered, and rather the insistence of any corroboration is only a rule of prudence that would depend upon the peculiar facts and circumstances of each case.”

21. In ***Suryanarayana Vs. State of Karnataka (2001) 9 SCC 129***, held that;

“The evidence of the child witness cannot be rejected per se, but the court, as a rule of prudence, is required to consider such evidence with close scrutiny and only on being convinced about the quality of the statements and its reliability, base conviction by accepting the statement of the child witness.”

22. In ***Rameshwar Vs. State of Rajasthan (1952) AIR 54***; the landmark judgment held that child testimony, much scrutinized, does not require compulsory corroboration in the absence of grounds for suspecting tutoring or fabrication.

23. In ***The State of Madhya Pradesh Vs. Balveer Singh (2005) INSC 261***, the Supreme Court of India revisited fundamental principles regarding the testimony of child witnesses and the application of Section 106 of the Indian Evidence Act, 1872 (“Evidence Act”) in cases involving suspicious deaths within the confines of a home. This decision carries paramount significance as it clarifies the standard for assessing the credibility of child witnesses, addresses the implications of delayed recording of such testimony, and underscores the shifting burden of proof under certain factual scenarios.

“The Trial Court must also record the demeanour of the child witness during the course of its deposition and cross-examination and whether the evidence of such

child witness is his voluntary expression and not borne out of the influence of others."

"There is no requirement or condition that the evidence of a child witness must be corroborated before it can be considered. A child witness who exhibits the demeanour of any other competent witness and whose evidence inspires confidence can be relied upon without any need for corroboration and can form the sole basis for conviction."

24. Having regard to the consistency of the prosecutrix's testimony, the absence of any material contradiction elicited in cross-examination, there is no sufficient basis to regard the prosecution version as inherently improbable. On the contrary, the evidence, when considered as a whole, supports the probability of the prosecution version and does not give rise to a reasonable doubt as to its credibility.

25. Moreover, it should be noted that the learned Trial Judge observed the demeanour and deportment of the prosecutrix and formed a view that she was a credible and probable witness even before the cross-examination had been concluded. Significantly, at this stage, in assessing the credibility of the prosecutrix, this Court does not place reliance on that observation, as it was made prematurely, prior to a cumulative assessment of the entirety of the evidence.

26. In this stage, however, it is also desirable to emphasize that the Learned Trial Judge had the advantage of observing the demeanour of the witnesses. Accordingly, the Appellate Courts are slow to interfere with the findings of a trial judge unless it is demonstrated that the trial judge has manifestly misdirected herself on a material issue, thereby causing prejudice to the Appellant.

27. In *Alwis vs. Piyasena Fernando (1993) 1 Sri. L R 119*, it was held that:

"It is well established that findings of primary facts by a trial Judge who hears and sees witnesses are not to be lightly disturbed on appeal."

28. Similar sentiments were articulated in *Dharmasiri vs. Republic of Sri Lanka [2010] 2 Sri. L.R.241*, where it was held that:

“Credibility of a witness is mainly a matter for the trial Judge; the Court of Appeal will not lightly disturb the findings of a trial Judge with regard to the credibility of a witness unless such findings of the trial Judge are manifestly wrong.”

29. In the Court of Appeal decision **of Kumar de. Silva and 2 others vs. Attorney General [2010] 2 Sri LR 169**, Sarath de. Abrew J had held that;

“Credibility is a question of fact, not of law. The acceptance or rejection of evidence of witnesses is therefore a question of fact for the Trial Judge.”

30. In **Ariyadasa vs. Attorney General [2012] 1 Sri LR 84**, the Court of Appeal held that;

“Court of Appeal will not lightly disturb a finding of a Judge with regard to the acceptance or rejection of a testimony of a witness, unless it is manifestly wrong, when the Trial Judge has taken such a decision after observing the demeanour and deportment of a witness.....”

31. Accordingly, while this Court recognizes that the learned Trial Judge had the advantage of observing the demeanour and deportment of the prosecutrix and that such an advantage is ordinarily entitled to due consideration by the appellate court, any assessment of her credibility and probability must nevertheless be made upon a proper and cumulative consideration of the entirety of the evidence, including the evidence elicited in cross-examination. In the present case, the learned Trial Judge observed that the prosecutrix was a credible and probable witness before the conclusion of her cross-examination and before the evidence had been assessed cumulatively. Accordingly, this Court does not rely on that observation in determining the credibility and probability of the prosecutrix.

32. Moreover, PW2 and PW3 testified that the Appellant placed his own daughter on a pair of shoes while she was exposed to the heat of the sun, whereas the prosecutrix was seated on the lap of the Appellant. Such conduct on the part of the Appellant is highly unusual and inconsistent with the conduct ordinarily expected of a reasonable parent. This evidence lends further support to the account given by the prosecutrix regarding the circumstances in which the alleged incident took place.

“ප්‍ර: ලොකු දුවයි පුතයි දෙන්නම දුවගෙන ඇවිල්ලා තමා මට ඉස්සෙල්ලම කිව්වේ ?

උ: කොහොමද කිව්වේ?

ප්‍ර: අම්මේ වමින්ද මාමගේ නංගිව අව්වේ සෙරෙප්පුවක් උඩ නියල අඩ අඩා හිටියා. අපි අපහු එනකොට අපේ නංගිව ඔඩොක්කුවේ නියාගෙන තමා හිටියේ වමින්ද මාමා.” (at vide page 123 of the Appeal Brief)

“ප්‍ර: ඒ කියන්නේ වතුර ඉල්ලලා ඇඩුවා කියල කිව්වේ?

උ: ඔව් එය හිටියේ අව්වේ. සෙරෙප්පු දෙකක් උඩ.” (at vide page 184 of the Appeal Brief)

33. Further, it should be noted that the evidence of PW2 and PW3 is materially corroborated by the evidence of the prosecutrix. The consistency between the account given by the prosecutrix and the evidence of PW2 regarding the material circumstances of the incident strengthens the credibility of the prosecutrix’s testimony.

34. Since the Appellant contended that the findings of the JMO, as reflected in the Medico-Legal Report, were inconsistent with and contradictory to the testimony of PW1, I shall now consider whether such an inconsistency in facts exists.

35. PW8, the Judicial Medical Officer (JMO), testified on behalf of the prosecution. According to the brief history recorded by the JMO, a person called Anton Chaminda (වමින්ද මාමා) took her, together with her siblings and his daughter, to pluck green leaves. The said person thereafter sent her siblings and his daughter away and kept the prosecutrix seated on his lap. When his daughter began to cry, the siblings of the prosecutrix brought the child back and placed her beside the Appellant. The Appellant thereafter continued to keep the prosecutrix on his lap and inserted his hand through the waistband of her skirt and her undergarment and touched her genital area. The prosecutrix and the Appellant subsequently stood up and adjusted their clothing when the siblings of the prosecutrix returned.

36. It is significant to note that the evidence adduced by the prosecutrix at the trial was materially consistent with and corroborated the brief history furnished by her to the JMO. Thus, there is no material inconsistency between the account given by the prosecutrix at the trial and the brief history furnished to the JMO.

“ප්‍ර: එතොකොට ඔබයි, මේ විත්තිකාරයි, මේ විත්තිකාරයාගේ දූවයි කැළුවක් වගේ නැතක නතර වුන කියල කිව්වේ?

උ: එහෙමයි

ප්‍ර: ඒ නැවතිලා මොනවද කිව්වේ?

උ: ඒ මාමාගේ දූව සෙරෙප්පු දෙක උඩින් තිබ්බ. ඊට පස්සේ මව ඒ මාමාගේ ඔඩොක්කුවට ගත්ත. ” (at vide page 69 of the Appeal Brief)

37. Further, it is significant to note that the brief history provided by the prosecutrix did not specify the exact date on which the alleged incident occurred. However, the JMO’s personal notes expressly record the date and time stated by the prosecutrix in relation to the alleged incident. This is significant in assessing the consistency and genuineness of the account given by the prosecutrix regarding the sequence of events.

“ප්‍ර: වෛයදතුමනි ඒ අනුව මේ සිද්ධිය සිද්ධ වුනු දවසක් සම්බන්ධයෙන් මේ දැරිය ප්‍රකාශ කෙරුවද?

උ: 2016 අප්‍රේල් 15 වන දින දවල් 12.30 ට වශයෙන් ඇය ප්‍රකාශ කර සිටිය ප්‍රශ්න කිරීමේදී

ප්‍ර: වෛයදතුමනි ඒ කරුණ අන්තර්ගත වන්නේ කුමන ලේඛනයේද?

උ: මගේ පවුල්ගලික සටහන්වල. ” (at vide page 137 of the Appel Brief)

38. According to the MLR, the prosecutrix was found to have a dilated semilunar hymen, with a notch at the 3 o’clock position and a tear below, extending towards the base of the hymen. The JMO further recorded that there was medical evidence suggestive of very recent vaginal penetration.

39. The JMO further opined that, having regard to the nature of the injuries he observed on the prosecutrix, the injuries to the hymen and vagina were consistent with penetration by a finger.

“ප්‍ර: ඒ අනුව කොයි වගේ දෙයක් ප්‍රවිෂ්ට වෙද්දීද මේ වගේ තුවාල වෙන්න පුළුවන් මේ වගේ නිරීක්ෂණ වෙන්න පුළුවන් කියල මතයක් ඉදිරිපත් කරන්න පුලුවන්ද?

උ: මෙහිදී කන්‍යා පටලය සහ යෝනි මාර්ගය යන දෙකම ප්‍රවිෂ්ට ගතවීමට ලක්වෙලා තිබෙනවා. එම කන්‍යා පටල විවරයේ සහ යෝනි මාර්ගයේ ප්‍රවිෂ්ටය අනුව එය ඇගිලි ප්‍රවිෂ්ටයකින් සිදු වී ඇති බවට ප්‍රමාණාත්මකව ඇගයීමට ලක් කර ප්‍රකාශ කල හැකියි.

ප්‍ර: එසේ මතයක් ඉදිරිපත් කිරීමට හේතුව කුමක්ද?

උ: යෝනි මාර්ගයේ ප්‍රවිෂ්ඨ වී තිබීම, කන්‍යා පටලයේ සුව වෙමින් පවතින රත්පැහැ ගැන්වීමක් සහ ඉරියාමක සලකුණු දක්නට ලැබීම සහ එහි ප්‍රමාණය ප්‍රාණවත් පුරුෂ ලිංගයක ප්‍රවිෂ්ඨයකට ප්‍රමාණවත් නොවීම යන කරණය.”(at vide page 139 of the Appeal Brief)

40. It is further significant to note that the history furnished by the prosecutrix to the JMO was also consistent with the JMO’s findings regarding the possibility of penetration by a finger. The account given by the prosecutrix to the JMO, therefore, lends further support to the medical findings.
41. Moreover, the evidence of PW2 and PW3 further corroborates the testimony of the prosecutrix, particularly as PW3 had witnessed part of the incident. Accordingly, the testimonies of PW1, PW2 and PW3 are materially consistent with the medical evidence. The credibility of PW1’s testimony remained unshaken notwithstanding the extensive cross-examination to which she was subjected. The defence failed to elicit any material contradiction or omission in her evidence sufficient to give rise to a reasonable doubt regarding the truthfulness or reliability of her testimony. Accordingly, I find no sufficient basis upon which to place reliance on the alleged inconsistency between the evidence of PW1 and the medical evidence.
42. Further, it was contended by the Appellant that the Learned Trial Judge failed to consider all the pieces of evidence cumulatively, which would affect the test of spontaneity.
43. PW2, the mother of the prosecutrix, testified that, on the day of the alleged incident, at approximately 11.00 a.m., she became aware that her children, together with the prosecutrix, had gone to the paddy field to pluck green leaves with the Appellant, his wife and his daughter. They returned home at about 12.30 p.m. Thereafter, the siblings of the prosecutrix informed PW2 that the Appellant had seated the prosecutrix on his lap. Upon hearing this, PW2 questioned the prosecutrix regarding the alleged incident, whereupon the prosecutrix disclosed the incident to her mother.
44. However, at the time, PW2 did not immediately disclose the alleged incident to her husband, as she feared that he might cause further trouble due to his addiction to liquor.

Subsequently, on the same day, PW2 informed her husband of the alleged incident, following which he confronted the Appellant and a quarrel ensued. Thereafter, they proceeded to the police station and lodged a complaint.

45. The delay in lodging the complaint is reasonably explained by the evidence of PW2, who testified that she was apprehensive that the father of the prosecutrix, due to addiction to liquor, might cause further trouble. Accordingly, the delay in making the complaint cannot, in the circumstances, be regarded as undermining the credibility of the prosecution case.
46. In these circumstances, I find no basis to accept the Appellant's contention that the Learned High Court Judge failed to properly analyze and evaluate the evidence. On the contrary, the judgment demonstrates a careful consideration of both the prosecution and defence evidence. Accordingly, I find that the grounds of appeal advanced by the Appellant are devoid of merit and must fail.
47. For the foregoing reasons, I find no basis to interfere with the findings of the Learned Trial Judge. Accordingly, I affirm the conviction and sentence imposed by the Learned High Court Judge of Chilaw on 21.08.2025. In the circumstances, the appeal is dismissed.
48. Considering all the circumstances, I order that the sentence be operative from the date of conviction, namely, 21.08.2025

Judge of the Court of Appeal

P. Kumararatnam, J.

I agree

Judge of the Court of Appeal